

2024 Y L R 56

[Lahore]

Before Masud Abid Naqvi, J

GHULAM HUSSAIN (deceased) through Legal heirs and others---Petitioners

Versus

**SHER MUHAMMAD (deceased) through Legal heirs and others---
Respondents**

Civil Revision No. 598 of 2012, decided on 5th November, 2021.

Civil Procedure Code (V of 1908)---

---O. VII, Rr. 11 & 13---Specific Relief Act (I of 1877) , S. 12---Suit for specific performance of agreement to sell---Rejection of plaint---Cause of action, arising of--Scope---Suit filed by the plaintiff regarding agreement to sell/ transfer of proprietary rights qua suit-property (state land) was concurrently decreed in his favour---Contention of the petitioners (vendors/defendants) was that the Province of the Punjab('the Province') had not granted proprietary rights of the suit-property to them yet---Validity---Record revealed that suit-property was still owned by the Province and the state retained its powers to deny the proprietary rights to the petitioners/defendants in case of any violation, hence both the Courts below, while passing the impugned judgments and decrees , failed to appreciate the material fact that the respondent/plaintiff had filed suit for specific performance before arising cause of action as the alleged agreement to sell could not be enforced until proprietary rights were confirmed by the Province to the petitioners/defendants---High Court set-aside the impugned judgments and decrees having been passed in favour of respondent/plaintiff; and rejected the plaint filed by the respondent/plaintiff under R. 11 read with Rule 13 of O. VII of Civil Procedure Code, 1908---Revision was allowed, in circumstances.

Commissioner Multan Division, Multan and others v. Muhammad Hussain and others 2015 SCMR 58 ref.

Saif-ul-Haq Ziay for Petitioners.

Inam Ullah Hashmi for Respondents Nos. 1(a) to 1(e).

Date of hearing: 21st September, 2021.

JUDGMENT

MASUD ABID NAQVI, J.---Concise facts of this civil revision are that plaintiff/Sher Muhammad (predecessor in interest of respondents Nos.1(a) to 1(e) filed a Suit for Specific Performance of Contract regarding the property in dispute contending therein that the suit land was allotted to Ghulam Muhammad/ predecessor-in-interest of the petitioners / defendants Nos.1 to 4 under the Abadkari Scheme. Said Ghulam Muhammad died and his legal heirs were the allottees of the suit land. Defendants Nos.2 to 4 appointed defendant No.1/petitioner No.1 as their general attorney through registered power of attorney dated 17.03.1971 and on the

basis of said attorney, defendant No.1 executed an agreement to sell with plaintiff on 17.03.1971 on his behalf and on behalf of defendants Nos. 2 to 4 for a consideration of Rs.12,000/- and received Rs.7500/- as earnest money and handed over possession of suit land to the plaintiff. It was written in agreement to sell that the defendants Nos. 1 to 4 would transfer the suit land in favour of the plaintiff after confirmation of proprietary rights by receiving the balance price of Rs.4500/-. The defendants were asked to transfer the suit land in favour of the plaintiff, they refused, hence the suit. Defendants Nos.1 to 3/petitioners contested the suit by way of filing written statement. Defendant No.5/respondent No.3 also contested the suit by filing its written statement. Out of divergent pleadings of the parties, issues were framed by the learned Trial Court. The parties produced their respective evidence and after recording the same, learned Trial Court decreed the suit of plaintiff vide judgment and decree dated 16.06.2010, subject to payment of balance price Rs.4500/- within fifteen days. Feeling aggrieved, the petitioners/ defendants Nos.1 to 3 filed an appeal and the learned Additional District Judge, Bhakkar vide judgment and decree dated 30.11.2011 dismissed the appeal. Being dissatisfied, defendants Nos.1 to 3/ petitioners have filed the instant Revision Petition and challenged the validity of the judgments and decrees passed by the learned Courts below.

2. I have heard the arguments of learned counsels for the petitioners and legal heirs of deceased respondent No.1/ Sher Muhammad and minutely gone through the available record as well as the impugned judgments and decrees of the learned Courts below. Despite service no one has entered appearance on behalf of legal heirs of respondent No.2, hence, they are hereby proceeded against ex-parte.

3. Plaintiff/deceased Sher Muhammad filed a suit for Specific Performance of Agreement to Sell dated 17.03.1971 with regard to the suit land contending therein that Ghulam Hussain defendant No.1/ petitioner No.1 himself and as attorney of defendants Nos.2 and 3/petitioners Nos. 2 and 3 executed the alleged agreement to sell dated 17.03.1971 in favour of plaintiff/deceased Sher Muhammad, who is being represented by his legal heirs respondents No.1(a) to 1(e). Apart from other pleadings in the plaint, the plaintiff/predecessor in interest of respondents No.1(a) to 1(e), also pleaded about the ownership of the land in a manner, which is reproduced hereunder:--

Defendants Nos. 1 to 3/petitioners filed a contesting written statement and respondent No.5 / Province of the Punjab also filed the contesting written statement and the relevant part / portion of the written statement is mentioned here-under:-

4. Defendants Nos.1 to 3/petitioners allegedly executed the agreement to sell with the condition that after the grant of proprietary rights to them, they will complete the sale process. By simply perusing the entire record as well as pleadings of the contesting parties and the disputed agreement to sell, there remains no doubt that defendants Nos. 1 to 3/ petitioners are not the owners of the disputed land and the land in dispute is still owned by respondent No.3/the Province of the Punjab and State retains its powers to deny the proprietary rights to the petitioners / defendants in case of any violation, hence, the learned Courts below while passing the impugned judgments and decrees failed to appreciate this fact that the

plaintiff/predecessor in interest of respondents Nos.1(a) to 1(e) namely Sher Muhammad filed Suit for Specific Performance before arising cause of action as the alleged agreement to sell cannot be enforced until proprietary rights are confirmed by the Province of the Punjab to the defendants/petitioners. In this regard, I am fortified by the dictum laid down by the Hon'ble Supreme Court of Pakistan in case of "Commissioner Multan Division, Multan and others v. Muhammad Hussain and others" (2015 SCMR 58), the operative part is reproduced hereunder: -

"....there is a distinction between the disputes pertaining to claim for proprietary rights by an allottee or his successors against the State from disputes between allottees and their vendees of state land under transactions concluded prior to grant of proprietary rights. Liberal treatment is accorded by the law to an agreement to sell, concluded by an allottee with a 1, vendee in anticipation of securing proprietary rights of State land. As held in Muhammad Sadiq v. Muhammad Ramzan (2002 SCMR 1821), an agreement or deed of sale of land leased by the State, being contractual is treated as valid inter parties but the same cannot be enforced until proprietary rights are conferred by the State...."

5. Both the learned Courts below have failed to appreciate theses material facts, provisions of law and the dictum laid down by the Honourable Superior Courts. Hence, the findings of both the learned Courts below are set aside by accepting this Civil Revision. Resultantly, the plaint filed by plaintiff/Sher Muhammad/predecessor in interest of respondents Nos. 1(a) to 1(e) is hereby rejected under Order VII, Rule 11, read with Rule 13 of C.P.C.

MQ/G-31/L Revision allowed.